

Law & Motion
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19. 9:00 AM CASE NUMBER: N25-0895

CASE NAME:

DISQUALIFY DEFENSE FIRM

FILED BY:

TENTATIVE RULING:

Petitioner James Adcock has filed a Motion to Disqualify Defense Firm in this Petition arising out of an Underinsured Motorist arbitration. The Petition was filed relating to a “dispute . . . with respect to discovery” on May 2, 2025. Petitioner filed the motion to disqualify attorney Shirin Delkhah and the Law Firm of Tosci, Doyle, Houvener & Wellen on April 14, 2026. The Motion was originally set for hearing on July 23, 2026. Shortly before that date, Petitioner notified the Court that he had not served Respondent with the Motion—an ironic twist given the nature of this Motion—and the Court continued the hearing to August 13, 2026, to give Respondent a chance to oppose the Motion. The Court is now in receipt of an opposition and a reply.

This is, at core, a discovery dispute and Petitioner spills much ink on the underlying discovery dispute. The Court cannot, on the evidence before it today, and especially not on this Motion—which is about disqualification—resolve the underlying the discovery dispute about whether Petitioner’s rights have been violated. The *sole issue* before the Court on this Motion is whether counsel for State Farm has engaged in misconduct sufficient to warrant disqualification.

Although the record is confusing, it appears to the Court that counsel had a third party serve subpoenas. Counsel appears to have missed that Petitioner’s counsel had left his firm and started at a new firm, and did not properly update her third party. Subpoenas were therefore not properly served. It *appears* that the third party subsequently misprinted the proofs of service such that they are false—showing service at Mr. Lombardini’s new address long before he moved there. While it is possible that someone falsified these proofs of service purposely, it is equally possible that in reprinting them, a software program grabbed Mr. Lombardini’s new address and they became *inadvertently* falsified. What is evident to the Court in either situation is that there is no clear information that *counsel* engaged in this misdeed.

While the Court would certainly expect all subpoenas for personal information to follow all statutory provisions, and that counsel would engage in honest and direct communication, there is nothing before the Court conclusively showing that that did not occur.

The Motion is therefore **denied**.